

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: JULIA CAMPINS
HEARING DATE: 05/14/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10
Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Courtroom Clerk's Calendar

1. 8:31 AM CASE NUMBER: C23-00894 CASE NAME: KDAS VENTURES LLC, A LIMITED LIABILITY COMPANY, VS. FREEDOM FLIP INVESTMENTS I, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY *FURTHER CASE MANAGEMENT CONFERENCE FILED BY: <u>*TENTATIVE RULING:*</u>
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See Line 8 below. Moving counsel must appear in person, but all other attorneys or parties may appear by Zoom to address how the case will proceed after the withdrawal motion is ruled on.

2. 9:00 AM CASE NUMBER: C24-02966 CASE NAME: YUE REN VS. GAUTAM PATIL SETTLEMENT CONFERENCE WITH SETTLEMENT MENTOR

3. 9:00 AM CASE NUMBER: C25-00347 CASE NAME: JONATHAN COTHAM VS. THOMAS KNOTH
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***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

See Line 11 below.

4. 9:00 AM CASE NUMBER: C25-01159

CASE NAME: ANGELLA JACKSON VS. OAKLEY UNION ELEMENTARY SCHOOL DISTRICT

***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

See Line 13 below. If plaintiff elects not to amend within the time allowed, defendant may present a dismissal of the action for the Court's signature. If plaintiff does file and serve a second amended complaint, the case is set for further case management conference on October 27, 2026, at 8:30 a.m.

5. 8:31 AM CASE NUMBER: C25-02637

CASE NAME: ROBIN FERNANDEZ VS. VEG SAN RAMON, LLC,

***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: JAMES L. ARRASMITH, ESQ.**

FILED BY: FERNANDEZ, ROBIN

TENTATIVE RULING:

Counsel to appear (in person) for an in camera hearing as to grounds for withdrawal. The client may also appear in person if desired.

6. 9:00 AM CASE NUMBER: C25-02637
CASE NAME: ROBIN FERNANDEZ VS. VEG SAN RAMON, LLC,
*FURTHER CASE MANAGEMENT CONFERENCE

FILED BY:

TENTATIVE RULING:

See Line 5 above. Other counsel may appear by Zoom to address how the case will proceed depending on the ruling on the withdrawal motion.

7. 9:00 AM CASE NUMBER: MSC16-00996
CASE NAME: ELY VS. WALNUT CREEK ASSOCIATES 2 [PAGA]
SETTLEMENT CONFERENCE WITH SETTLEMENT MENTOR

Law & Motion

8. 9:00 AM CASE NUMBER: C23-00894
CASE NAME: KDAS VENTURES LLC, A LIMITED LIABILITY COMPANY, VS. FREEDOM FLIP
INVESTMENTS I, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY

*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: KEVIN R. MARTIN, ESQ.

FILED BY: BECK, ROBERT

TENTATIVE RULING:

Counsel to appear (in person) for an in camera hearing as to grounds for withdrawal. The client may also appear in person if desired.

9. 9:00 AM CASE NUMBER: C23-01703
CASE NAME: TIM ARLEN VS. DOES 1-10, INCLUSIVE

*MOTION/PETITION TO COMPEL ARBITRATION

FILED BY: ARLEN, TIM

TENTATIVE RULING:

Plaintiff petitions to arbitrate the uninsured motorist portion of this claim. The motion is unopposed, and it is **granted**.

10. 9:00 AM CASE NUMBER: C24-02943
CASE NAME: DANIEL VILLANUEVA VS. MANCINI'S SLEEPWORLD, INC.
*HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF CLASS ACTION AND PAGA
SETTLEMENT

FILED BY: VILLANUEVA, DANIEL

TENTATIVE RULING:

Plaintiff Daniel Villanueva moves for preliminary approval of his class action and PAGA settlement

with defendant Mancini's Sleepworld, Inc. The motion is **granted**.

A. Background and Settlement Terms

Defendant Mancini's is in the business of selling mattresses, beds, and related products in traditional retail stores and online. Plaintiff Villanueva worked for Mancini's as a sales manager during the relevant time period.

The original complaint was filed on October 31, 2024.

The settlement would create a gross settlement fund of \$300,000. The class representative payment to the plaintiff would be \$10,000. Attorney's fees would be \$100,000 (one-third of the settlement). Litigation costs would not exceed \$20,000. The settlement administrator's costs are estimated at \$7,000. PAGA penalties would be \$80,000, resulting in a payment of \$52,000 to the LWDA. The net amount paid directly to the class members would be about \$83,000. The fund is non-reversionary. There are an estimated 49 class members. Based on the estimated class size, the average net payment for each class member is approximately \$1,694. The individual payments will vary considerably, however, because of the allocation formula prorating payments according to the number of pay periods worked during the relevant time.

The entire settlement amount will be deposited with the settlement administrator within 30 days after the effective date of the settlement.

The proposed settlement would certify a class of all current and former non-exempt employees employed at Defendants' California facilities between December 1, 2022 and May 20, 2024, who did not sign arbitration agreements with Mancini's.

The class members will not be required to file a claim. Class members may object or opt out of the settlement. (Aggrieved employees cannot opt out of the PAGA portion of the settlement.) Funds would be apportioned to class members based on the number of pay periods worked during the class period.

A list of class members will be provided to the settlement administrator within 20 days after preliminary approval. Various prescribed follow-up steps will be taken with respect to mail that is returned as undeliverable. Settlement checks not cashed within 180 days will be cancelled, and the funds will be directed to the State Bar's Greg E. Knoll Justice Gap Fund as a cy pres beneficiary.

The settlement contains release language covering all claims and causes of action, alleged or which could have reasonably been alleged based on the allegations in the operative pleading, including a number of specified claims. Under recent appellate authority, the limitation to those claims with the "same factual predicate" as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 ("A court cannot release claims that are outside the scope of the allegations of the complaint.") "Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint' is impermissible." (*Id.*, quoting *Marshall v. Northrop Grumman Corp.* (C.D. Cal.2020) 469 F.Supp.3d 942, 949.)

Formal discovery was undertaken, resulting in the production of substantial documents. The matter settled after arms-length negotiations, which included a session with an experienced mediator.

Counsel also has provided an analysis of the case, and how the settlement compares to the potential value of the case, after allowing for various risks and contingencies. For example, much of plaintiff's

allegations centers on possible off-the-clock work, including missed or skipped meal breaks and rest breaks. Defendant, however, pointed out that its formal policies prohibit off-the-clock work, and asserted that it would have had no knowledge of employees beginning work before punching in or continuing after punching out. Further, it argued that it was required to make meal and rest breaks available, but not required to ensure that they be taken, so long as no employer policy prevented or discouraged taking such breaks. As to unreimbursed employee expenses (such as cell phone use, mileage, and masks), plaintiff would have been called on to show that such expenses were in fact incurred, were reasonably necessary to job performance, and were unreimbursed. Furthermore, the fact-intensive character of such claims would have presented a serious obstacle to class certification.

The potential liability needs to be adjusted for various evidence and risk-based contingencies, including problems of proof. PAGA penalties are difficult to evaluate for a number of reasons: they derive from other violations, they include “stacking” of violations, the law may only allow application of the “initial violation” penalty amount, and the total amount may be reduced in the discretion of the court. (See Labor Code § 2699(e)(2) (PAGA penalties may be reduced where “based on the facts and circumstances of the particular case, to do otherwise would result in an award that is unjust arbitrary and oppressive, or confiscatory.”)) Moreover, recent decisions may make it difficult for PAGA plaintiffs to recover statutory penalties, as opposed to actual missed wages. (See, *e.g.*, *Naranjo v. Spectrum Security Services, Inc.* (2024) 15 Cal.5th 1056.)

Counsel attest that notice of the proposed settlement was transmitted to the LWDA concurrently with the filing of the motion.

B. Legal Standards

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro*, 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal’s decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the “fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees”. (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “The court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “Where the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141

Cal.App.4th 48, 63.)

The settlement agreement includes an escalator provision, to be triggered in the event that the number of covered employees or work weeks turns out to be materially higher than now estimated. If the clause is triggered and the defendant elects to increase the total payment, no further approval will be needed. The parties are cautioned, however, that in the event the clause would result in a significant modification of the settlement (such as cutting back the covered period), it would be prudent to seek further approval from the Court.

C. Attorney Fees

Plaintiff seeks one-third of the total settlement amount as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval.

Similarly, litigation and administration costs and the requested representative payment of \$10,000 for the plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-07.

D. Discussion and Conclusion

The Court finds that the settlement is sufficiently fair, reasonable, and adequate to justify preliminary approval.

Counsel will be directed to prepare an order reflecting this tentative ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs’ counsel are to submit a compliance statement one week before the compliance hearing date. Five percent of the attorney’s fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

11. 9:00 AM CASE NUMBER: C25-00347
CASE NAME: JONATHAN COTHAM VS. THOMAS KNOTH
HEARING ON ORDER TO SHOW CAUSE IN RE: ON PLEADINGS
FILED BY:
TENTATIVE RULING:

Defendant’s motion for judgment on the pleadings is calendared for September 24. The case management conference is also continued to that date. The orders to show cause are discharged.

12. 9:00 AM CASE NUMBER: C25-00957
CASE NAME: EAST BAY MUNICIPAL UTILITY DISTRICT VS. MATT KAUFFMAN

***HEARING ON MOTION IN RE: DISMISS CCP 430.10 AND HOLD PLAINTIFF IN CIVIL CONTEMPT
FILED BY: CHANDLER, JOHN B.**

TENTATIVE RULING:

Although neither side has drawn attention to the point, the Court observes from the judicially noticeable materials provided that Kauffman's 2010 bankruptcy was a no-assets discharge. The Court accordingly **continues** this motion to June 11, 2026, at 9:00 a.m. On or before May 29, each side should file a short supplemental brief addressing the potential relevance of *In re Beezley*, 994 F.2d 1433 (9th Cir. 1993).

**13. 9:00 AM CASE NUMBER: C25-01159
CASE NAME: ANGELLA JACKSON VS. OAKLEY UNION ELEMENTARY SCHOOL DISTRICT
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: OAKLEY UNION ELEMENTARY SCHOOL DISTRICT
*TENTATIVE RULING:***

Before the Court is Defendant Oakley Union Elementary School District's Demurrer to Plaintiff's First Amended Complaint.

Defendant's Demurrer is **sustained with leave to amend** for the reasons set forth below.

Background and Factual Allegations

Plaintiff filed her initial complaint on April 25, 2025, alleging a single cause of action for breach of contract against Defendant Oakley Union Elementary School District. A stipulation to allow the filing of a First Amended Complaint (FAC) was filed on November 24, 2025. The operative FAC was filed on December 11, 2025. The District filed its demurrer to the FAC on January 21, 2026.

The FAC includes the 2-page Form Complaint – Contract (PLD-C-001), civil case cover sheet, a Declaration of Angella Jackson which purports to authenticate and attach nine exhibits. As for the causes of action alleged, the Form Complaint states:

8. The following causes of action are attached and the statements above apply to each (each complaint must have one or more causes of action attached):
- ☐ Breach of Contract
 - ☐ Common Counts
 - ☒ Other (specify): *Negligence, Civil Rights Violations; Emotional Distress; Educational Harm*
9. ☒ Other allegations: *See attached complaint narrative and continuation pages.*

While the above section notes that the 'causes of action' are attached, and the Form Complaint makes clear that each complaint "must have one or more causes of action attached," there are no 'causes of action' forms attached to the FAC. Nor is there a statement or other document attached which sets forth the elements and/or facts supporting each of the above identified 'Other' causes of action purportedly asserted by the FAC.

Upon reviewing the documents attached to the FAC it appears that the general gist of Plaintiff's complaint relates to claims that her son was bullied while attending a school within the District in

2022, and that the District failed to properly address the problem.

Standard for Demurrer

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 (“*Doe*”)), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) A complaint must be “liberally construed” and a demurrer “overruled if any cause of action is stated by the plaintiff.” (*Amacorp Industrial Leasing Co. v. Robert C. Young Associates, Inc.* (1965) 237 Cal.App.2d 724, 727.)

Legal conclusions are insufficient. (*Id.* at 1098–99; *Doe* at 551, fn. 5.) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.) A demurrer lies only for defects appearing on the face of the complaint or from matters of which the court must or may take judicial notice. (Code Civ. Proc. § 430.40; see *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Analysis

Defendant raises several different arguments as to why its demurrer should be sustained. The Court will address them in the order presented. Plaintiff has filed only a cursory, conclusory, one-page opposition brief that does not seriously address any of these arguments. In short, the Court concludes that all of defendant’s arguments are well-taken as to the existing FAC. They present more nuanced considerations, however, as to potential leave to amend.

Government Claim Act

Defendant argues that Plaintiff’s FAC fails as a matter of law because there are no allegations that Plaintiff complied with the Government Claim Act before filing suit.

“In California the tort liability of a public entity is wholly statutory.” (*Tolan v. State of California ex rel. Dept. of Transp.* (1979) 100 Cal.App.3d 980, 983.) “Government Code section 815 restores sovereign immunity in this state except as provided in the Tort Claims Act or other statutes.” (*Ibid.*) “Since the duty of a government agency can only be created by statute or ‘enactment,’ the statute or ‘enactment’ claimed to establish the duty must at the very least be identified.” (*Searcy v. Hemet Unified School Dist.* (1986) 177 Cal.App.3d 792, 802.)

The Government Claims Act provides, “as a general rule, that no suit for money or damages may be maintained against a public entity unless a timely written claim has first been presented to it.” (*N.G. v. County of San Diego* (2020) 59 Cal.App.5th 63, 72.) “A claim for ‘injury to person’ must be presented ‘not later than six months after the accrual of the cause of action.’” (*Ibid.* quoting Gov’t Code § 911.2(a).) A claim related to any other cause of action must be presented “not later than one year after the accrual of the cause of action.” (*Ibid.*) “Compliance with the claims statutes is mandatory [citation]; and failure to file a claim is fatal to the cause of action. [citation].” (*City of San Jose v. Superior Court* (1974) 12 Cal.3d 447, 454.)

“[F]ailure to allege facts demonstrating or excusing compliance with the requirement subjects a complaint to general demurrer for failure to state a cause of action.” (*State v. Superior Court* (2004) 32 Cal.4th 1234, 1241.)

The FAC alleges no facts indicating that Plaintiff made any attempt to file a claim, nor does it include any facts demonstrating that Plaintiff is excused from filing a claim. It appears from the documents attached to the FAC that all the bullying actions which underlie the FAC occurred in March and/or April 2022. Accordingly, Plaintiff would have needed to file her claim by September or October 2022 for any alleged ‘injury to person’ and by April 2023 for any other claims. (Gov’t Code § 911.2(a).)

The documents indicate the Plaintiff submitted a complaint to the NAACP in May 2022 and filed a complaint against the District with the Department of Education in August 2022. There are no allegations or documents, however, that indicate that Plaintiff filed a Government Claim with the District.

In Plaintiff’s opposition, she asserts that federal civil rights claims are not barred by the Government Claim Act. It is true that federal civil rights claims are not subject to the Government Claim Act. (See e.g. *Gatto v. County of Sonoma* (2002) 98 Cal.App.4th 744, 764-65; *Williams v. Horvath* (1976) 16 Cal.3d 834, 842.)

The FAC, however, does not specify that Plaintiff is asserting any federal civil rights causes of action. The FAC merely states: “Civil Rights Violations.” It does not indicate whether those claims are state civil rights violations or federal. It also fails to identify what particular federal claims she is assertedly relying on. Some federal-law claims are still subject to a claims-presentation requirement, while others are not. Without knowing what federal claims plaintiff is seeking to present, the Court cannot determine whether any of her claims would be exempt from a claims presentation requirement.

To the extent Plaintiff does, or may be able to, assert federal civil rights violations, Defendant’s arguments relating to the failure to allege compliance with the Government Claim Act do not apply. If Plaintiff is going to rely on federal law to excuse her failure to file a timely government claim, however, she must identify what federal claim or claims in particular she is alleging, and must limit her claims to those that would not be subject to a claims-presentation requirement.

Statute of Limitations

To the extent the Plaintiff is alleging state law claims on her own behalf, they are governed by a two-year statute of limitations. (Code Civ. Proc. §§ 351.5; *So v. Shin* (2013) 212 Cal.App.4th 652, 662.) Accordingly, even if a government claim were submitted, the claims are barred by the applicable statute of limitations. As discussed below, her equitable tolling assertion is unavailing.

If Plaintiff is attempting to assert claims on behalf of her son, it is worth noting that the running of any statute of limitations is potentially tolled while he is a minor. (Code Civ. Proc. § 352(a)). Kedemoni’s status as a minor does not, however, extend the time for filing a notice of claim against a government entity, so his state law claims would still be barred. (Code Civ. Proc. § 352(b)).

As outlined above, it is unclear what, if any, federal claims Plaintiff is asserting. Accordingly, the Court cannot determine whether they would be barred by the applicable statute of limitations. The Court will address any federal statute of limitations arguments if Plaintiff files an amended complaint

specifically identifying the particular federal causes of action.

Equitable Tolling

Equitable tolling “is a narrow remedy that applies to toll statutes of limitations only ‘occasionally and in special situations.’” (*Saint Francis Memorial Hospital v. State Dept. of Public Health* (2020) 9 Cal.5th 710, 724.) It has been held to apply in three situations: (1) when there is already another action pending on a relevant issue; (2) when the plaintiff needed to pursue, and did pursue, an administrative remedy before filing a civil action; and (3) where “technical forfeitures would unjustifiably prevent a trial on the merits.” (*Ibid.*)

While Plaintiff mentions ‘equitable tolling’ in her opposition, there are no specific facts alleged which would support such a theory. “Where a claim is time-barred on its face, the plaintiff must specifically plead facts that would support equitable tolling.” (*Long v. Forty Niners Football Co., LLC* (2019) 33 Cal.App.5th 550, 555.) Plaintiff has failed to allege that the statute of limitations for her state law claims should be equitably tolled.

Failure to Join Indispensable Party

The FAC indicates that the Plaintiff is Angella Jackson. The claims and documents attached to the FAC all appear to relate to actions taken against her son, Kedemoni Jackson, as the basis for the various causes of action. For example, the police report indicates that her son was bullied and that Ms. Jackson believes that the school failed to act properly to protect her son from such actions. Accordingly, the gist of the complaint appears to set forth claims on behalf of Kedemoni Jackson, not Angella Jackson.

While the FAC does not state how old Kedemoni Jackson is now, or was at the time of the events, it appears that he was and still is a minor given he was in the 7th grade at the time. (See Police Report p. 3.) To the extent the claims are properly brought by Kedemoni Jackson, as he is a minor, he must be represented by a guardian ad litem. (Code Civ. Proc. § 372(a).) As Kedemoni Jackson is the plaintiff, the appointment of the guardian ad litem “must be made before the summons is issued....” (Code Civ. Proc. § 373(a).)

There is no indication that Angella Jackson has been appointed guardian ad litem on behalf of Kedemoni Jackson. Even if she were, or if she requests to be appointed his guardian ad litem at this time, Angella Jackson would not be able to represent her son as she is not an attorney. A “guardian ad litem who appears in court and acts as would an attorney on behalf of the ward is practicing law on behalf of the ward,” and is considered to be “practicing law without a license,” if they are not an attorney. (*J.W. v. Superior Court* (1993) 17 Cal.App.4th 958, 965-68.) Thus, if Angella Jackson were appointed as Kedemoni’s guardian ad litem, she would need to obtain counsel to move forward with this matter on his behalf.

Failure to Plead Facts

A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins.*

Exchange (2005) 132 Cal.App.4th 1076, 1099 quoting *Ludgate Ins. Co. v. Lockheed Martin Corp.* (2000) 82 Cal.App.4th 592, 608.)

As noted by Defendant, the FAC fails to allege any facts to support any of the purported causes of action. While there are several documents attached to the FAC, there is no discussion or description of any facts or how they apply to any of the purported causes of action. Merely writing “negligence” or “emotional distress” without any description of facts to support those claims is insufficient to properly state those causes of action. Additionally, as noted above, the FAC indicates that Angella Jackson is the Plaintiff. The claims asserted and documents attached, however, appear to relate to actions taken against her son Kedemoni Jackson. Accordingly, the FAC does not appear to support any claims of Angella Jackson personally.

Leave to Amend

“Our Supreme Court has observed that where ‘plaintiff has not had an opportunity to amend the complaint in response to the demurrer, leave to amend is liberally allowed as a matter of fairness, unless the complaint shows on its face that it is incapable of amendment.’” (*Eghtesad v. State Farm General Ins. Co.* (2020) 51 Cal.App.5th 406, 412 quoting *City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 747.) While the pleading at issue is a FAC, this is the first time that the Court has addressed these issues as Plaintiff filed the FAC pursuant to a stipulation between the parties.

Plaintiff has already taken one opportunity to amend her complaint to address its deficiencies, and has not done a very good job of it. Repeated failures to remedy defects may form a basis for denying further leave to amend. At this juncture, however, plaintiff is obtaining the Court’s rulings on these points for the first time, and she should be allowed at least one more opportunity to present viable claims.

For clarity, the Court will summarize the considerations that plaintiff should take into account in deciding whether and how to amend:

1. No leave to amend is allowed as to any state-law claims, whether pleaded on behalf of plaintiff herself or of her son. All such claims are barred by the failure to file a timely government claim, and the Court cannot see how that can be remedied.
2. No leave to amend is allowed as to any claims on behalf of plaintiff herself (as opposed to on behalf of her son), whether state or federal. Any such claims would be barred by limitations, and again the Court cannot see how that can be remedied.
3. Plaintiff may consider filing federal-law claims on behalf of her son, if she can identify such claims that are not subject to California’s claims-presentation requirement.
4. If Plaintiff asserts any claims on behalf of her son, however, she must seek appointment as a guardian ad litem, and must obtain legal counsel.
5. And in any event, in any amended claims, the factual allegations for the claims must be actually set forth in the body of the complaint, rather than being presented only by stapling police reports or other documents to the complaint. Each cause of action must also be

separately presented as a distinct count.

Plaintiff may file and serve a second amended complaint within 30 days. If she does not do so, the Court will take that as an election not to amend and will accordingly dismiss the action.

Conclusion

Defendant's demurrer is **sustained with leave to amend**. It appears possible the Plaintiff may be able to properly allege federal claim(s) that are not barred by the failure to file a government claim and which may not be barred by the applicable statute of limitations given her son's status as a minor.

If Plaintiff contests this tentative ruling to seek leave to amend beyond what has been granted, she should appear at the hearing (Zoom okay) prepared to explain exactly what other amendments she has in mind and why they would be effective and permissible.

14. 9:00 AM CASE NUMBER: C25-02495
CASE NAME: JAMES STROUT VS. JENNIFER HOLDEN
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**
FILED BY:
TENTATIVE RULING:

The motion to withdraw is **moot** in light of the subsequent substitution filed.

15. 9:00 AM CASE NUMBER: C25-02505
CASE NAME: TRUDY LOGAN VS. ONPOINT AMERISAFE SERVICES, LLC
HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO JASON D. FRIEDMAN
FILED BY: ONPOINT AMERISAFE SERVICES, LLC
TENTATIVE RULING:

Jason Friedman's application to appear pro hac vice is **granted**.

16. 9:00 AM CASE NUMBER: L24-04469
CASE NAME: CAPITAL ONE, N.A. VS. MICHAEL CHONG
***HEARING ON MOTION IN RE: FOR STAY OF ENFORCEMENT JUDGMENT PENDING APPEAL**
FILED BY: CHONG, MICHAEL W
TENTATIVE RULING:

This motion is **moot** in light of defendant's express abandonment of his appeal and the dismissal of the appeal.

17. 9:00 AM CASE NUMBER: MSC21-01164
CASE NAME: KIRK PATRICK ANTHONY JONES, JR. VS. REAL TIME STAFFING SERVICES, LLC
***HEARING ON MOTION IN RE: COMPLIANCE AND DISTRIBUTION STATUS SET BY THE COURTROOM.**
FILED BY:
TENTATIVE RULING:

The report of plaintiffs' counsel is satisfactory, and the distribution is deemed completed. The remaining \$6,000 may be disbursed to plaintiffs's counsel.

18. 9:00 AM

CASE NUMBER: MSC21-02258

CASE NAME: THOMAS VS. ECKERT

HEARING ON SUMMARY MOTION

FILED BY: BAYWOODS HOMEOWNERS ASSOC.

TENTATIVE RULING:

Before the Court is a motion for summary judgment or, in the alternative, summary adjudication, filed by Baywoods Homeowners Association and Homeowners Management Co., LLC (collectively "Baywoods defendants" or "moving parties"). The motion is **denied**, as set forth below. Defendant David Eckert's joinder is also **denied**.

I. Background

Plaintiff Adrienne Thomas purchased a condominium in 2006 and as part of that purchase, became subject to the applicable CC&Rs, which make the Baywoods Homeowners Association responsible for certain repairs, including maintaining, repairing, and replacing the Common Area pursuant to the recorded CC&Rs. (Separate Statement of Undisputed Material Fact, hereinafter "SSUMF," Fact. No. 1, and plaintiff's response.) The Baywoods CC&Rs define Building Common Area to include central heating and air-conditioning equipment. (SSUMF, Fact. No. 2, and plaintiff's response.) Management of the Common Area is vested in the Baywoods Homeowners Association. (SSUMF, Fact. No. 3, and plaintiff's response.)

Plaintiff does not know when it appeared or began, but in January 2021 plaintiff observed a soot-like dust in her unit and made a complaint about such dust to the HOA. (SSUMF, Fact. Nos. 4-7, and plaintiff's response.) Contractors cleaned plaintiff's unit and replaced components of the HVAC system—work plaintiff did not need to pay for. (SSUMF, Fact. Nos. 8-11, and plaintiff's response.)

In 2021, an HVAC contractor, Peter Tyndall, observed the dust collected in the HVAC filters, and recommended replacement of the HVAC system, though the HVAC system would not have caused any "soot." At deposition, Tyndall acknowledged a lack of expertise in mold or moisture issues, though he identified no statutory or code violations. (SSUMF, Fact. Nos. 12-14, 16-17, 19, and plaintiff's response.)

Plaintiff filed this action against David Eckert, as well as Baywoods Homeowners Association and Homeowners Management Co., LLC in October 2021. After a demurrer by defendant Eckert was sustained, plaintiff filed the operative Second Amended Complaint ("SAC") on May 31, 2023. Plaintiff therein alleges, *inter alia*, that Baywoods HOA failed to investigate complaints and complete required repairs. As a result, plaintiff alleges her unit was in a hazardous condition that caused her health issues and expenses.

The SAC alleges five causes of action: (1) breach of contract, (2) negligence, (3) negligence per se, (4) gross negligence, and (5) intentional infliction of emotional distress. In July of 2023, the defendants answered the SAC by way of general denial.

In early March of 2024, plaintiff's deposition was taken. She testified at that time that she did not know the cause of the soot-like condition, but that the HVAC system had been replaced after Tyndall recommended replacement. (SSUMF, Fact. Nos. 15, 20-22, and plaintiff's response.)

Baywoods defendants now moved for summary judgment or summary adjudication in the

alternative.

II. Motion and Opposition

Baywoods defendants argue that plaintiff cannot show an essential element of each claim. Specifically, they contend she cannot show causation.

In support of the motion, Baywoods defendants provide a declaration from counsel which attaches excerpts from plaintiff's deposition transcript, excerpts from the deposition transcript of HVAC inspector, Peter Tyndall, and excerpts from the CC&Rs. As required on this sort of motion, Baywoods defendants provide 24 facts they contend are "undisputed" and "material" in their SSUMF.

Plaintiff opposes the motion, arguing Baywoods defendants have not met their initial burden because they did not address her operative legal theory, which is based on mold from moisture intrusion through deteriorated siding. Plaintiff submits a response to the SSUMF as well as her own additional material facts she contends are disputed. She supports the opposition with her own declaration, wherein she states that, despite testifying at deposition that she did not know the cause of the condition, she found out the cause later that year upon hiring an expert. She further states that this was shared with Baywoods defendants "and has been a primary focus of fact discovery since that time." Plaintiff also provides a declaration from counsel, attaching various discovery documents, and a declaration from plaintiff's retained engineer, Peter Petrovsky.

The reply does not address the additional facts or specify why plaintiff is wrong about the breadth of the SAC and it being capable of embracing plaintiff's new mold theory. The reply argues it is plaintiff who "attempts to shift the burden" and that her evidence is too speculative to establish causation. Neither side has filed any evidentiary objections.

III. Standard

To be entitled to judgment as a matter of law, a defendant must show by admissible evidence that the action has no merit. (Code Civ. Proc., § 437c, subd. (a).) A defendant can meet this burden by demonstrating one or more elements cannot be established, or by showing a complete defense. (Code of Civ. Proc., § 437c, subd. (o).) The scope of the moving party's initial burden is "framed by the pleadings." (*Leyva v. Garcia* (2018) 20 Cal.App.5th 1095, 1102.)

A defendant moving for summary judgment need not conclusively negate an element of the plaintiff's cause of action, but may also show the plaintiff cannot establish an essential element by showing that the plaintiff does not possess, and cannot reasonably obtain, "needed evidence." (*Leyva*, 20 Cal.App.5th at 1102.) In making this showing, a defendant may use "admissions by the plaintiff following extensive discovery to the effect that [plaintiff] has discovered nothing" to support an essential element of the case. (*Id.* at 1102.) A defendant could also use "factually devoid discovery responses from which an absence of evidence may be reasonably inferred." (*Id.* at 1102-1103.)

Once the moving defendant has met that burden, the burden shifts to the plaintiff to show via specific facts that a triable issue of material fact exists. (Code of Civil Procedure § 437c, subd. (p)(2).) Although the burden of production may shift, the moving party always bears the burden of persuasion. (*Aguilar v. Atlantic Richfield* (2001) 25 Cal.4th 826, 850.) Even where an MSJ is unopposed, or the opposition is flawed, the Court cannot grant summary judgment unless the moving party meets its initial burden to show a cause of action is without merit. (*Leyva*, 20 Cal.App.5th at 1101; *Johnson v. Superior Court* (2006) 143 Cal.App.4th 297, 305.) "All doubts as to the propriety of granting the motion—i.e., whether there is any triable issue of material fact—are to be resolved in favor of the party opposing the motion." (*Cohen v. Five Brooks Stable* (2008) 159 Cal.App.4th 1476,

1483.)

A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment. (Code Civ. Proc., § 437c (f)(2).)

IV. Discussion

The same basic flaw runs through the entirety of Baywoods defendants' motion. The problem is that they are seeking summary adjudication on factual theories that plaintiff is no longer pursuing – while entirely ignoring the theories that she is now pursuing. As to the construction issues, this means the motion focuses solely on the HVAC issue, which plaintiff is no longer espousing as the basis for her claims. Instead, she now bases her claims on siding issues – which the moving defendants address by pretending they aren't there. Similarly as to the IIED claim: The Court shared defendants' view that it was dubious, probably impossible, to rest something as strong as IIED on nothing more than a careless but not malicious failure of building maintenance. But plaintiff's opposition brief makes clear that this claim rests on an alleged campaign of harassment and accusations. Whether those allegations could support an IIED claim is not an issue now before the Court, because the moving defendants have intentionally not placed it there; neither their moving papers nor their reply says a word about these allegations.

It may be at least partially fair to observe that the movants are addressing plaintiff's case as initially pleaded rather than as it has developed through discovery and investigation. It may be prudent for plaintiff to consider amending her complaint, at some point before trial, to update her allegations to reflect the case she actually intends to put forward at trial. But as the Court will discuss, the existing pleading is sufficient to support reliance on these different factual theories for purposes of this motion. Moreover, it is also fair to assume that the moving defendants were aware of the theories they now try to ignore away.

A. MSJ – Motion Does not Address All Causes of Action

To obtain summary judgment, as opposed to summary adjudication, a defendant must show conclusively that all of the plaintiff's causes of action or legal theories fail as a matter of law. (See *Jimenez v. Protective Life Ins. Co.* (1992) 8 Cal.App.4th 528, 534.) As noted in the opposition here, the moving papers entirely fail to address the elements of the first cause of action (breach of contract). Since both the Notice of Motion and the SSUMF both label the "first" cause of action as one for negligence, this appears to have been an oversight. Separately, had moving parties shown *lack* of causation, like they argue they have done, the showing might defeat the breach of contract claim. They do not show such absence of causation, as described below.

B. MSA - Initial Burden

i. Issue 1: Negligence (2nd C/A)

In order to establish liability on a negligence theory, a plaintiff must prove: (a) a legal duty to use due care; (b) a breach of such legal duty; (c) the breach as the proximate or legal cause of the resulting injury. (*Victor v. Hedges* (1999) 77 Cal.App.4th 229, 238.)

Baywoods defendants' motion seeks to establish the lack of causation. They rely on 2023 deposition testimony from plaintiff and 2024 deposition testimony from her HVAC contractor. Notably, instead of offering *ultimate* facts with respect to each of the claims, Baywoods defendants list only what these witnesses purportedly "testified" at deposition, but the cited portions of the

deposition transcripts do not contain the testimonial evidence moving parties contend. Nor are the excerpts highlighted or searchable (as required by the Rules of Court), allowing the Court to identify whether the incorrect citations are typographical errors. (See e.g., SSUMF, Fact No. 5-15, 18-24.) Even if the transcripts showed what Baywoods defendants assert, the transcripts are outdated in the face of plaintiff's new theory of liability.

Plaintiff's opposition evidence demonstrates that her latest theory of causation is not related to soot, but to water intrusion and alleged failures to maintain the siding. Plaintiff asserts this cause was discovered when she hired an expert in 2024, after she filed the SAC and after the referenced depositions were taken. Plaintiff's opposition argues the SAC allegations are broad enough to encompass her operative mold theory, teeing up the issue in such a way that moving parties were required to foreclose it in their motion.

Instead of proactively addressing this new theory in the moving papers, Baywoods defendants avoid it altogether, apparently hoping the Court will allow them to rely on the SAC's description of "soot" to prevent plaintiff from pursuing the "new, unpleaded theory." (Reply, 2:4.)

The Court acknowledges the pleading itself is not as open-ended as a prudent attorney might have drafted. Plaintiff appears to have been representing herself and drafting the complaint without counsel's assistance. While a close question as to whether the SAC encompasses the new theory, the reply neglects to confront this issue head-on by explaining why, under a liberal construction, the SAC cannot encompass the current operative mold theory. Baywoods defendants further ignore the opposition evidence that demonstrates they have been made aware of this theory in 2024 (Declaration of Adrienne Thomas, ¶42), initiated destructive testing based on this theory (See Declaration of Colin Barreno, ¶15, Ex. 3), and have been responding to written discovery requests related to this theory since November 2025. (See Declaration of Colin Barreno, Ex. 5-8.)

The SAC alleges Baywoods defendants failed to maintain the common areas and restore her property to pre-loss condition. This is sufficient to require moving parties to explore and foreclose the potential contentions plaintiff might advance at trial. They have not done so. As described in *Leyva*, a defendant must, at a minimum, show the plaintiff cannot reasonably obtain "needed evidence." (*Id.* at 1102.) Baywoods defendants have not sufficiently narrowed potential causation to soot, thereby establishing soot causation is the "needed evidence." They have not presented "extensive discovery" to foreclose other theories, as shown by the narrative presented in the opposition papers. (*Ibid.*) Indeed, Baywoods defendants do not provide any written discovery responses from plaintiff whatsoever, let alone "factually devoid" ones. (*Id.* at 1102-1103.)

Baywoods defendants assert that plaintiff also cannot establish they "breached a duty" to her. Similar to the causation element, Baywoods defendants do not flesh out the manner in which plaintiff is contending they committed a breach. Accordingly, the argument that she *cannot* show a breach is not adequately presented.

Plaintiff asserts that a failure to maintain common areas is a question that necessarily includes maintaining siding. The evidence presented indicates no siding repairs were made despite a report concluding they were necessary. Where there is room for an honest difference of opinion between persons of average intelligence as to whether there has been a breach of duty in a negligence action, the question is one of fact that must be submitted to a jury. (*Johnson & Johnson Talcum Powder Cases* (2019) 37 Cal.App.5th 292, 323, citing *Putensen v. Clay Adams, Inc.* (1970) 12 Cal.App.3d 1062, 1077.)

The Court concludes moving parties do not meet their initial burden on the negligence cause

of action and, accordingly, need not proceed to examine triable issues.

ii. Issue 2: Negligence Per Se (3rd C/A)

As the moving papers state, negligence per se does not create an independent cause of action. (Memorandum of Points and Authorities in Support of Motion, 4:26-28, citing *Quiroz v. Seventh Ave. Center* (2006) 140 Cal.App.4th 1256, 1285.) Accordingly, the discussion above equally applies to this cause of action.

In addition, while plaintiff's HVAC contractor may have failed to "identify any statutory, regulatory, or code violation related to the HVAC system or any condition attributable to Defendants" at deposition (Memorandum of Points and Authorities, 5:1-3), this does not mean plaintiff herself does not have such a theory, or an expert who might have identified a violation.

On negligence per se, defendants fail to shift the burden to plaintiff and summary adjudication must be denied.

iii. Issue 3: Gross Negligence (4th C/A)

The motion seeks to eliminate the gross negligence cause of action based on the contention that plaintiff cannot show "a want of even scant care" or an "extreme departure from the ordinary standard of conduct." (Memorandum of Points and Authorities in Support of Motion, 5:13-16, citing *City of Santa Barbara v. Superior Court* (2007) 41 Cal.4th 747, 754.)

Baywoods defendants' facts in support of this issue fail to acknowledge any theory outside of the soot issue, and also fail to pin down what, precisely, this theory is based on. Plaintiff, as noted above, asserts Baywoods defendants ignored recommendations for siding repair for years, as well as warnings about water intrusion, and this constitutes gross negligence. (See Response to SSUMF, Additional Material Fact Nos. 25-33.) The burden to demonstrate this will fall on plaintiff at trial, but on summary judgment, the burden to foreclose the issue falls on defendants.

The motion fails to eliminate the issue so summary adjudication must also be denied with respect to gross negligence.

iv. Issue 4: IIED (5th C/A)

As noted in the moving papers, intentional infliction of emotional distress requires a plaintiff to show extreme and outrageous conduct by the defendant, intent to cause emotional distress or reckless disregard of the probability of causing emotional distress, severe emotional distress, and causation. (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050.)

The opposition points out that the underlying conduct here was not limited to the failure to repair an issue with plaintiff's unit. The opposition lists other allegations such as "racially charged and derogatory comments in group settings; calling code enforcement on Plaintiff; attempting to obtain a restraining order to prevent Plaintiff from pursuing remedies; obtaining Plaintiff's PG&E utility bills without authorization; sharing private financial information in open emails; turning off the HVAC during extreme heat; and Defendant Eckert's violation of the restraining order during the October 2024 site visit." (Opposition, 15:4-10, citing Declaration of Adrienne Thomas.)

Other factual allegations in the SAC include plaintiff's contention that David Eckert, who is alleged to have been acting on behalf of moving parties, and already owns 75 of the units, sought to force plaintiff to sell the property through his harassing conduct and accusations (that she had set her

own property on fire, that crack was being smoked in the unit, etc.). (See SAC, ¶¶2, 7, 15, 21, 25-30, 34.) If true, these acts could be the sort of conduct that qualifies as “outrageous” in the eyes of a reasonable juror.

The motion fails to isolate all facts upon which plaintiff will rely in attempting to prove this cause of action. Accordingly, it is unclear whether there are factual disputes. The motion proffers that plaintiff has not sought counseling, but that is not sufficient to show plaintiff has not suffered emotional distress. Additionally, regardless of whether the “dust” in plaintiff’s unit was caused by soot or mold, or something else, the alleged actions by Eckert (in his capacity representing the other defendants) may be what plaintiff intends to advance at trial. Judgment as a matter of law is not permitted absent some certainty about what plaintiff will assert.

Accordingly, the motion papers fail to shift the burden to plaintiff to show triable disputes of fact and summary adjudication cannot be granted with respect to the fifth cause of action.

C. Material Factual Disputes

Still, even if the Baywoods defendants had shifted the initial burden, plaintiff’s evidence demonstrates there are material facts in dispute. (See SSUMF, Fact Nos. 13-17, 20, 24, and plaintiff’s response.) While plaintiff may not be able to credibly advance a “soot” theory at trial, investigation reports from defendants’ own investigations could permit plaintiff to advance a mold theory. (See Response to SSUMF, Additional Material Fact Nos. 25-33.)

V. **Joinder**

I. Joinder Not Properly Noticed.

The notice of joinder was untimely. It was to be served no later than February 22, 2026. (See Code Civ. Proc, § 473c, subd. (a)(2) [a motion for summary judgment requires an 81-day period of notice]; *Frazee v. Seely* (2002) 95 Cal.App.4th 627, 636-637 [addressing summary judgment statute then in effect and holding joinder due at same time as motion].) Eckert filed and served his joinder on April 24, 2026 which did not provide sufficient notice. It must therefore be denied.

II. Evidentiary Matters

In support of her Opposition to the joinder, plaintiff raises objections to Eckert’s evidence. In granting or denying a motion for summary judgment or summary adjudication, the Court need rule only on those objections to evidence that it deems material to its disposition of the motion. (Code Civ. Proc., § 437c (q).) Accordingly, the Court declines to rule on plaintiff’s objections.

19. 9:00 AM CASE NUMBER: MSC21-02258
CASE NAME: THOMAS VS. ECKERT
HEARING IN RE: JOINDER TO BAYWOODS HOMEOWNERS ASSOCIATION & HOMEOWNERS
MANAGEMENT CO., LLC'S MSJ
FILED BY: ECKERT, DAVID
TENTATIVE RULING:

Please see Line 18 above.

20. 9:00 AM CASE NUMBER: N22-1091
CASE NAME: COMMUNITIES FOR A BETTER ENVIRONMENT VS. COUNTY OF CONTRA COSTA

***HEARING ON MOTION IN RE: DISCHARGE WRIT OF MANDATE**

FILED BY: MARATHON PETROLEUM CORPORATION

TENTATIVE RULING:

Respondent Contra Costa County and Real-Party-In-Interest Marathon Petroleum's motion to discharge the writ of mandate is **granted**. Petitioners filed this case challenging an EIR issued by the County on May 3, 2022, arguing that it violated CEQA. On August 23, 2023, the Court issued a writ ordering the County to set aside the Project approval as to the odor mitigation section only and to reconsider the odor mitigation plan.

The County filed this motion to discharge the writ. Petitioners have not opposed this motion. The County provided a supplemental record showing that it set aside approval as to the odor mitigation and section. The County also issued a draft revised EIR including a detailed Odor Mitigation and Control Plan, which was subsequently approved the County. The Court has reviewed the new Odor Mitigation and Control Plan and finds that it complies with the writ of mandate. Therefore, the Court finds that the County has complied with this Court's writ and the writ is discharged.

21. 9:00 AM CASE NUMBER: N26-0383

CASE NAME: CLAIM OF:NORAH GLASSMOYER

***HEARING ON MINOR'S COMPROMISE**

FILED BY: GLASSMOYER, ELYCE

TENTATIVE RULING:

The proposed minor's compromise is **approved**.

22. 9:00 AM CASE NUMBER: N26-0467

CASE NAME: PETITION OF:J.G. WENTWORTH ORIGINATIONS, LLC

HEARING ON PETITION IN RE: VERIFIED PETITION FOR APPROVAL FOR TRANSFER OF PAYMENT RIGHTS

FILED BY:

TENTATIVE RULING:

The proposed transfer is **approved**.

23. 9:00 AM CASE NUMBER: N26-0488

CASE NAME: PETITION OF:J.G. WENTWORTH ORIGINATIONS, LLC

HEARING ON PETITION IN RE: VERIFIED PETITION FOR APPROVAL FOR TRANSFER OF PAYMENT RIGHTS

FILED BY: J.G. WENTWORTH ORIGINATIONS, LLC

TENTATIVE RULING:

The proposed transfer is **approved**.

24. 9:01 AM CASE NUMBER: N23-0409

CASE NAME: ALEXANDRA PADILLA VS. BRIAN DEMAINE

***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF'S ANSWERS AT DEPOSITION AND FOR SANCTIONS**

FILED BY: HOWARD ORTHOPEDICS, INC., A CALIFORNIA CORPORATION

TENTATIVE RULING:

The plaintiff in this case, who is pro per, has a long and aggravated history of failures to provide proper discovery. This motion relates to her entirely unjustified refusals to answer a number of questions at her deposition. The motion is not opposed, and it is **granted in full**. Plaintiff is ordered to answer each of the questions that is involved in this motion, plus any reasonable follow-on questions on the same topics. She is warned that she has previously come close to incurring terminating sanctions for refusal to provide discovery, and any noncompliance with today's order is likely to result in dismissal of her case.

The Court further awards sanctions of \$9,937.50 on this motion, payable by plaintiff to defendant's counsel within 30 days hereof. These sanctions are cumulative with sanctions previously assessed in this case.